

Ramveer Singh Gurjar vs The State Of Madhya Pradesh Thr on 2 March, 2023

Author: Deepak Kumar Agarwal

Bench: Deepak Kumar Agarwal

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
BEFORE
HON'BLE SHRI JUSTICE DEEPAK KUMAR AGARWAL
ON THE 2 nd OF MARCH, 2023
CRIMINAL REVISION No. 1184 of 2016

BETWEEN: -

1. RAMVEER SINGH GURJAR S/O SHRI RAMKRISHAN SINGH, AGED ABOUT 40 YEARS, RESIDENT OF B-30 VINAY NAGAR SECTOR 4 GWALIOR (MADHYA PRADESH)
2. RAJVEER SINGH S/O SHRI LAXMINARAYAN, AGED ABOUT 34 YEARS, OCCUPATION: NA RESIDENT OF VILLAGE BAMROLI P.S. RITHORAKALA, DISTRICT MORENA (MADHYA PRADESH)
3. LALLU @ RAMDAS S/O SHRI RATIRAM GURJAR, AGED ABOUT 32 YEARS, OCCUPATION: NA RESIDENT OF VILLAGE MAITHANA, DISTRICT MORENA (MADHYA PRADESH)
4. VISHNU S/O SHRI RAJARAM PATHAK, AGED ABOUT 35 YEARS, OCCUPATION: NA RESIDENT OF PATHAK GALI, GOPALPURA, MORENA (MADHYA PRADESH)
5. KESHAV SINGH S/O SHRI BAHADUR SINGH, AGED ABOUT 50 YEARS, OCCUPATION: NA RESIDENT OF OFFICER COLONY, MORENA (MADHYA PRADESH)
6. BANTI GURJAR S/O SHRI JAGDISH GURJAR, AGED ABOUT 25 YEARS, OCCUPATION: NA RESIDENT OF VILLAGE BAMROLI, DISTRICT MORENA (MADHYA PRADESH)
7. SANJEEV SINGH S/O SHRI PANCHAM SINGH, AGED ABOUT 50 YEARS, OCCUPATION: NA RESIDENT OF KANSANA BHAWAN M.S. ROAD, MORENA (MADHYA PRADESH)

8. KUSHAL SINGH S/O SHRI SANJEEV SINGH
KANSANA, AGED ABOUT 21 YEARS, OCCUPATION:
NA RESIDENT OF KANSANA BHAWAN M.S. ROAD,
MORENA (MADHYA PRADESH)

Signature Not Verified
Signed by: MAHENDRA
BARIK
Signing time: 3/4/2023
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9. RAGHURAJ SINGH S/O SHRI PANCHAM SINGH
KANSANA OCCUPATION: ADVOCATE RESIDENT
OF KANSANA BHAWAN M.S. ROAD, MORENA
(MADHYA PRADESH)

(SHRI BRAJESH KUMAR TYAGI AND SHRI MAHENDRA CHAUDHARY,
LEARNED COUNSEL FOR THE THE APPLICANTS)

AND

1. THE STATE OF MADHYA PRADESH THR
INCHARGE POLICE STATION P.S. KOTWALI
DISTRICT MORENA (MADHYA PRADESH)
2. THROUGH P.S. GRATER KAILASH P.S. GREATER
KAILASH NEW DELHI (DELHI)

(SHRI LOKENDRA SHRIVASTAVA, LEARNED COUNSEL FOR THE
RESPONDENT NO.1-STATE AND SHRI VIVEK KHEDKAR, LEARNED
COUNSEL FOR THE RESPONDENT NO.2)

Th is revision coming on for hearing this day, th e cou
following:

ORDER

Being aggrieved by the order of framing charges, dated 03-11-2016 passed by Fifth Additional Sessions Judge, Morena in Special Dacoity Case No.11/2016 for offences under Sections 148, 307, 307/149, 225, 225/149, 353, 332, 332/149, 393, 398/149 of IPC and Section 11/13 of MPDVPK Act, the applicants have preferred the present criminal revision under Section 397 of CrPC.

In brief, the facts giving rise to present revision are that on 09-05-2012 at around 08:25 am, complainant Sandeep Pawar, Sub-Inspector of Great Kailash, New Delhi came to Morena for execution of warrant of arrest of accused Sanjeev Singh son of Shri Pancham Singh in connection with Crime No. 01/2012 for offence under Section 420, 34 of IPC. When he tried to catch hold of accused with the help of local police of Morena, near about 20-25 persons assaulted on him and took away the warranty and thereafter a fire took place. They took away the accused from the custody of the police and tried to rob the pistol of the police and committed marpeet due to which said SI had

sustained injuries. On the basis of report, Crime No. 318 of 2012 for the aforesaid offences was registered against present applicants. The applicants were arrested. After completion of investigation and other formalities, charge sheet has been filed.

Learned counsel for the applicants submits that initially charges were framed by the trial Court against the accused Sanjeev Singh for commission of kidnapping and FIR and other criminal proceedings were quashed by Delhi High Court vide order dated 08-10-2022. So far as offence under Section 307 of IPC in the present matter is concerned, there is no allegation of causing any gunshot injury either to the complainant or any other person and there is no intention to commit murder. Petitioners were not involved in commission of theft or robbery, therefore, provisions of Section 398/149 of IPC are not attracted and also offence under Section 11/13 of MPDVPA Act is not made out against the petitioners. It is further submitted that the police personnel from Delhi had come in civil uniform to catch hold of accused Sanjeev Singh. So far as the earlier petitions filed by the present petitioners is concerned, the same were dismissed by this Court vide order dated 23-02-2016 and at that the investigation was pending but in the present matter the investigation is complete and the charges were framed against the petitioners. In support of his contention, the learned counsel for the petitioners has drawn attention to a newspaper cuttings wherein DGP of MP has given an opinion in regard to adopting wrong process by Delhi Police for catching hold of accused Sanjeev Singh. Hence, prayed for setting aside the impugned order of framing charges.

Learned counsel for State as well as respondent No.2 opposed the contentions of the petitioners and prayed for dismissal of this revision. In support of his contention, the counsel for the respondent no.2 has relied on the judgment of Apex Court in the case of Sonu Gupta vs. Deepak Gupta and Others, 2015(3) SCC 424, State of Rajasthan vs. Fatehkaran Mehdu passed in Criminal Appeal No. 216 of 2017 arising out of SLP (Crl) No.3998 of 2011 as well as judgment passed by this High Court in the case of Vikram Singh vs. State of MP on 3rd August, 2018 in CRR No. 1289 of 2018.

Heard learned counsel for the parties and perused the documents available on record.

So far as framing of charges and quashing of charges is concerned, law is well-settled. In the case of Union of India Vs. Prafulla Kumar Samal and another [(1979) 3 SCC 4], it is held by the Apex Court as under:-

"10. Thus, on a consideration of the authorities mentioned above, the following principles emerge:

(1) That the Judge while considering the question of framing the charges under Section 227 of the Code has the undoubted power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out.

(2) Where the materials placed before the Court disclose grave suspicion against the accused which has not been properly explained the Court will be fully justified in framing a charge and proceeding with the trial.

(3) The test to determine a prima facie case would naturally depend upon the facts of each case and it is difficult to lay down a rule of universal application. By and large however if two views are equally possible and the Judge is satisfied that the evidence produced before him while giving rise to some suspicion but not grave suspicion against the accused, he will be fully within his right to discharge the accused. (4) That in exercising his jurisdiction under Section 227 of the Code the Judge which under the present Code is a senior and experienced court cannot act merely as a post office or a mouthpiece of the prosecution, but has to consider the broad probabilities of the case, the total effect of the evidence and the documents produced before the Court, any basic infirmities appearing in the case and so on. This however does not mean that the judge should make a roving enquiry into the pros and cons of the matter and weigh the evidence as if he was conducting a trial." In the case of Dilawar Balu Kurane Vs. State of Maharashtra [(2002) 2 SCC 135], it is held by the Apex Court as under:-

"12. Now the next question is whether a prima facie case has been made out against the appellant. In exercising powers under Section 227 of the Code of Criminal Procedure, the settled position of law is that the Judge while considering the question of framing the charges under the said section has the undoubted power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out; where the materials placed before the court disclose grave suspicion against the accused which has not been properly explained the court will be fully justified in framing a charge and proceeding with the trial; by and large if two views are equally possible and the Judge is satisfied that the evidence produced before him while giving rise to some suspicion but not grave suspicion against the accused, he will be fully justified to discharge the accused, and in exercising jurisdiction under Section 227 of the Code of Criminal Procedure, the Judge cannot act merely as a post office or a mouthpiece of the prosecution, but has to consider the broad probabilities of the case, the total effect of the evidence and the documents produced before the court but should not make a roving enquiry into the pros and cons of the matter and weigh the evidence as if he was conducting a trial [See Prafulla Kumar Samal (supra)].

In the case of Sajjan Kumar Vs. Central Bureau of Investigation [(2010) 9 SCC 368], it is held by the Apex Court as under:-

"21. On consideration of the authorities about the scope of Sections 227 and 228 of the Code, the following principles emerge:-

(i) The Judge while considering the question of framing the charges under Section 227 Cr.P.C.

has the undoubted power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out. The test to determine prima facie case would depend upon the facts of each case.

(ii) Where the materials placed before the court disclose grave suspicion against the accused which has not been properly explained, the court will be fully justified in framing a charge and proceeding with the trial.

(iii) The court cannot act merely as a post office or a mouthpiece of the prosecution but has to consider the broad probabilities of the case, the total effect of the evidence and the documents produced before the court, any basic infirmities, etc. However, at this stage, there cannot be a roving enquiry into the pros and cons of the matter and weigh the evidence as if he was conducting a trial.

(iv) If on the basis of the material on record, the Court could form an opinion that the accused might have committed offence, it can frame the charge, though for conviction the conclusion is required to be proved beyond reasonable doubt that the accused has committed the offence.

(v) At the time of framing of the charges, the probative value of the material on record cannot be gone into but before framing a charge the court must apply its judicial mind on the material placed on record and must be satisfied that the commission of offence by the accused was possible.

(vi) At the stage of Sections 227 and 228, the court is required to evaluate the material and documents on record with a view to find out if the facts emerging therefrom taken at their face value discloses the existence of all the ingredients constituting the alleged offence. For this limited purpose, sift the evidence as it cannot be expected even at that initial stage to accept all that the prosecution states as gospel truth even if it is opposed to common sense or the broad probabilities of the case.

(vii) If two views are possible and one of them gives rise to suspicion only, as distinguished from grave suspicion, the trial Judge will be empowered to discharge the accused and at this stage, he is not to see whether the trial will end in conviction or acquittal." In the case of State through Central Bureau of Investigation Vs. Dr. Anup Kumar Srivastava [AIR 2017 SC 3698], it is held by the Apex Court as under:-

"23.... The legal position is well-settled that at the stage of framing of charge the trial court is not to examine and assess in detail the materials placed on record by the prosecution nor is it for the court to consider the sufficiency of the materials to establish the offence alleged against the accused persons. At the stage of charge the court is to examine the materials only with a view to be satisfied that a prima facie case of commission of offence alleged has been made out against the accused persons. It is also well settled that when the petition is filed by the accused under Section 482 of the Code seeking for the quashing of charge framed against him the court should not interfere with the order unless there are strong reasons to hold that in the interest of justice and to avoid abuse of the process of the court a charge framed against the accused needs to be quashed. Such an order can be passed only in exceptional cases and on rare occasions. The court is required to consider the record of the case and documents submitted therewith and, after hearing the parties, may either discharge the accused or where it appears to the court

and in its opinion there is ground for presuming that the accused has committed an offence, it shall frame the charge. Once the facts and ingredients of the section exists, then the court would be right in presuming that there is ground to proceed against the accused and frame the charge accordingly. This presumption is not a presumption of law as such. The satisfaction of the court in relation to the existence of constituents of an offence and the facts leading to that offence is a sine qua non for exercise of such jurisdiction. It may even be weaker than a prima facie case." Similarly, in the case of Soma Chakravarti Vs. State, reported in (2007) 5 SCC 403], it is held by the Hon'ble Apex Court that at the time of framing of charges, the probative value of material on record cannot be gone into, and the material brought on record by the prosecution has to be accepted as true.

Before framing a charge, the Court must apply its judicial mind on the material placed on record and must be satisfied that the commission of offence by the accused was possible. Whether the accused committed the offence or not, can only be decided in the trial. The charge may although be directed to frame when there exists the strong suspicion but it is also trite that the Court must come to a prima facie finding that there exists some material therefor.

In view of aforesaid facts and circumstances of the case as well as the law laid down by Hon'ble Apex Court and this Court, it is crystal clear that whether the accused have committed an offence or not, can only be decided in the trial. I find no perversity or illegality in the order impugned passed by learned Court below warranting any interference by this Court at the stage of framing of charges. Revision fails and is hereby dismissed.

(DEEPAK KUMAR AGARWAL) JUDGE MKB